

23STCV16871 23STCV16871

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-09-22

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C09%2F22%2F2026

Source SHA-256: 004e7e6a246daa378d879a36b34fb5dafd6907cc7de79c284f0018fd8b579d60

Case Number: 23STCV16871 Hearing Date: September 22, 2026 Dept: 11

Final

Approval of Class Action Settlement

Department

SSC-11

Shilian

v. Stanley A. Sirott Trust, et al.

Case No.: 23STCV16871

Hearing: September 22, 2026

TENTATIVE

RULING

Continue for counsel to provide an
updated declaration from the administrator addressing the following:

How many Aggrieved Employees are
there? How many Pay Periods did Aggrieved Employees work? Mr. Castro's
declaration does not provide this information.

BACKGROUND

This is a wage and hour class action. On
July 18, 2023, Plaintiff commenced this Action by filing a Complaint.

On November 27, 2023, Plaintiff filed

the Operative First Amended Complaint alleges the following causes of action against Defendant[1]:

(1) failure to pay minimum, regular, and overtime wages; (2) failure to provide meal periods; (3) failure to permit rest breaks; (4) failure to reimburse business expenses; (5) failure to provide accurate itemized wage statements; (6) failure to pay all wages due upon separation of employment; (7) violation of Business and Professions Code §§ 17200 et seq. and (8) for Enforcement of Labor Code § 2698 et seq. ("PAGA"). The First Amended Complaint is the operative complaint in the Action (the "Operative Complaint.")

Counsel contends

litigation was difficult because Defendant did not maintain written policies, Defendant did not maintain time records, many of Defendant's agreements with Class Members were made orally by Stanley A. Sirott who is deceased, and many of the documents that do exist were allegedly taken by family members and potentially destroyed. However, Plaintiff was able to access the value of Plaintiffs claims after: 1) Plaintiff's Counsel's calls with putative class members; 2) Defendant's provision of various data points regarding the Class Members, including Defendant's pay records, and information relating to the size and scope of the Class, as well as data regarding the number of Pay Periods during the Class and PAGA Period; and 3) a Belaire-West notice.

On November 18, 2024, the

Parties participated in a mediation with Kristin Rizzo. While the matter did not settle at mediation, with Ms. Rizzo's guidance, the Parties were eventually able to negotiate a complete settlement of Plaintiff's claims resulting in a Memorandum of Understanding entered into on January 6, 2025. A fully executed Settlement Agreement was filed with the Court on June 6, 2026 attached to the Declaration of Ben Travis ("Travis Decl.") ISO Preliminary Approval as Exhibit 2.

Preliminary Approval was granted on March

9, 2026. Notice was given to the Class Members as ordered. (See Declaration of Nick Castro[2] ("Castro Decl.").)

Now before the Court is the motion for

final approval of the settlement agreement.

CLASS

DEFINITION AND ESSENTIAL TERMS OF SETTLEMENT AGREEMENT

The

essential terms are as follows:

· "Class"

means all persons currently or formerly employed by Defendant as non-exempt employees who were required to live at one or more of Defendant's properties to do management, maintenance, and/or customer service work in California at any time during the Class Period. (Settlement, ¶1.5)

"Class

Period" means the period from July 19, 2019, through December 31, 2024. (¶1.12)

The Class

List contained 94 individuals who worked 4,548 pay periods. (Castro Decl., ¶5.)

·

"Aggrieved

Employee" means all persons currently or formerly employed by Defendant as a non-exempt resident manager employee in California at any time during the PAGA Period. (¶1.4)

o "PAGA Period" means the period from

July 19, 2022, thru December 31, 2024. (¶1.31)

o There are _____ Aggrieved Employees

who worked _____ Pay Periods during the PAGA Period. (Id. at ¶____.)

· Based

on a review of its records to date, Defendant estimates there are 103 Class Members who collectively worked less than a total of 6,200 Pay Periods and 70 Aggrieved Employees who worked less than a total of 3,500 Pay Periods. (¶4.1)

o

There are 94

individuals who worked 4,548 pay periods, and 93 Participating Class Members who worked 4,482 Pay Periods during the class period. (Castro Decl., ¶¶5,

14.) There are _____Aggrieved

Employees who worked _____Pay Periods during the PAGA Period. (Id. at ¶____.)

.

The

Gross Settlement Amount ("GSA") is \$1,000,000, non-reversionary. (¶3.1)

.

The

Net Settlement Amount ("NSA") of \$545,166.67 is the GSA minus:

- o Up to \$333,333 (33%) for attorneys' fees

(¶3.2.2);

§ Fee Split: 50% going to Justin Hewgill of

Employee Justice Legal Group and 50% to Ben Travis of Ben Travis Law, APC.

(Notice, pg. 3.)

- o Up to \$20,000 for attorneys' costs (Ibid.);

- o Up to \$20,000 for an Enhancement Payment to

the class representative (¶3.2.1.);

- o Up to \$6,500 for costs of settlement

administration (¶3.2.3); and

- o Payment of \$75,000 (75% of \$100,000 PAGA

penalty) to the LWDA (¶3.2.5).

.

Defendant

will separately pay for employer payroll taxes, which is not included in the

Gross Settlement Amount. (¶3.1)

.

Funding

of the Settlement: Defendant shall fully fund the Gross Settlement Amount and

also fund the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator within 30 calendar days of the "Effective Date". (§4.3)

.

There

is No Claim Requirement. (§3.1)

· Uncashed Checks: The Administrator will cancel all checks not cashed by the void date (not less than 180 days after the date of mailing).

(§4.4.1) For any Class Member whose Individual Class

Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (§4.4.3)

· Scope of the Release: Effective on the date when

Defendant fully funds the entire Gross Settlement Amount, Plaintiff and Class Members will release claims against all Released Parties as follows: (§5)

o

All Participating Class Members, on

behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release the Released Parties from all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint, which arose during the Class Period. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (§5.2)

o

All Aggrieved Employees are deemed to

release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint, and the PAGA Notice, which arose during the PAGA

Period. (¶15.3)

o

Defendant shall dismiss its Cross

Complaint against Plaintiff, his respective former and present spouses, representatives, agents, attorneys, heirs, administrators, successors, and assigns generally, release and discharge each of them from all claims, transactions, or occurrences arising out of Plaintiff's employment and or any relationship with any named Defendant that occurred prior to the date of execution of this agreement. (¶15.4)

o

Named Plaintiff will

additionally provide a general release and §1542 waiver. (¶15.1)

ANALYSIS

OF SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The Court preliminarily found in

its Order on March 9, 2026 that the presumption of fairness should be applied. No facts have come to the

Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement

fair, adequate, and reasonable?

The settlement was preliminarily found to be

fair, adequate and reasonable. Notice

has now been given to the Class and LWDA.

Reaction of the class

members to the proposed settlement.

Number of class

members: 94 (Castro Decl., ¶15.)

Number of notice
packets mailed: 94 (Id. at ¶7.)

Number of
undeliverable notices: 8 (Id. at ¶10.)

Number of
opt-outs: 1 (Id. at ¶11.)

Number of
objections: 0 (Id. at ¶12.)

Number of
participating class members: 93 (Id. at
¶14.)

Average
individual payment: \$5,700.72 (Id. at
¶15.)

Highest
estimated payment: \$7,807.01 (Ibid.)

Lowest
estimated payment: \$591.44 (Ibid.)

Number of Aggrieved Employees:

Average PAGA
payment: \$298.15 (Id. at ¶15.)

Highest
estimated PAGA payment: \$347.38 (Ibid.)

The Court finds that the notice was
given as directed and conforms to due process requirements. Given the reactions of the Class Members and
LWDA to the proposed settlement and for the reasons set for in the Preliminary
Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel requests \$333,333 (33%) in fees and litigation costs and expenses in the amount of \$10,212.50 to Class Counsel. (Travis Decl. ISO Final Approval, ¶124.)

The Settlement provides for attorney's fees up to \$333,333 (33%) and costs of \$20,000 (Settlement Agreement, ¶3.2.2). The class was provided notice of a maximum requested award amount of \$333,333 (1/3) attorney's fees up and \$20,000 for costs as requested awards and none objected. (Castro Decl., ¶12 and Exhibit A thereto.)

The following fee split has been agreed to herein: 50% going to Justin Hewgill of Employee Justice Legal Group and 50% to Ben Travis of Ben Travis Law, APC. (Notice, pg. 3.)

"Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method." (Wershba at 254.) Here, class counsel requests attorney fees using the percentage method, as cross checked by lodestar.

The fee request represents 33% of the gross settlement amount which is the average generally awarded in class actions. See *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 558, fn. 13 ("Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.").

Counsel has provided the following lodestar information:

BILLER

RATE

HOURS

TOTAL

Travis

\$1,000

140

\$140,000

Hewgill

\$1,000

135

\$135,000

Total

275

\$275,000

(Travis Decl. ISO Final Approval, ¶¶34-36; Hewgill Decl. ISO Final Approval[3], ¶7.)

Counsel

has spent over 275 hours in connection with this litigation, resulting in a lodestar of \$275,000, which would require a multiplier of 1.2 to yield the requested fee amount. (Motion ISO Final Approval, 29:2-4; Travis Decl. ISO Final Approval, ¶¶34-36; Hewgill Decl. ISO Final Approval, ¶7.)

As for costs, class counsel has

incurred costs of \$10,212.50. (Travis

Decl. ISO Final Approval, ¶37; Hewgill Decl. ISO Final Approval, ¶¶8-10.) Class Counsel is requesting \$10,212.50 in costs, which is less than the settlement cap of \$20,000.

Further, a maximum cap of \$20,000 for attorney's costs was disclosed to class members who did not object. (Castro Decl., ¶12 and Exhibit A thereto.)

The costs in this case include, but are not limited to, filing and service fees (\$2,923.68), mediation (\$4,350), and Case Anywhere costs (\$2,812.53). (Ibid.) The costs seem reasonable and necessary to litigation.

Therefore, the recommendation is to award \$333,333 (1/3) for fees and \$10,212.50 for litigation costs.

D.

Incentive

Award to Class Representative

The Settlement agreement provides for an incentive payment of up to \$20,000 to the named Plaintiff. (Settlement Agreement, ¶3.2.1.)

Plaintiff Shilian's contributions to this litigation include, but are not limited to, spending over 75 hours on the following: obtaining counsel, meeting with counsel, gathering documents, reviewing documents, assisting with and reviewing discovery, answering questions, remaining available for mediation session, and reviewing the settlement agreement. (Shilian Decl., ¶¶5-8.)

The

Court notes that such efforts are commendable, yet not exceptional. Based on the above, the court awards the amount of \$7,500 to Plaintiff.

E.

Claims

Administration Costs

The claims administrator requests \$6,500 for the costs of administering the settlement. (Castro Decl., ¶17.) This is equal to the \$6,500 maximum amount estimated in the Settlement Agreement; (Settlement Agreement, ¶3.2.3); and disclosed in the notice to class members, to which there were no objections.

Based on all the work performed by the Claims Administrator, the recommendation is to award costs in the requested amount of \$6,500.

[1] There were three named Defendants, Stanley A.

Sirott Trust (the "Trust"), Adrienne Sirott (both as an individual

and as the trustee of the Trust), and Gary Fields, an employee of the Trust.

This Settlement Agreement is entered into by the Trust as the employer during the entire period of the Operative Complaint. Upon entry of the Final Judgment the other named Defendants shall be dismissed.

[2]

Attached as Exhibit 2 to the Declaration of Ben Travis ISO Final Approval.

[3]

Attached as Exhibit 3 to the Declaration of Ben Travis ISO Final Approval.